



Terms of Service

Overview

These Terms of Service, presented by GrowthNext - F.Z.C (referred to as the "Terms"), establish the rules and responsibilities pertaining to you (referred to as a "Counterparty" or the "Customer") use of the challenges and services provided by GrowthNext - F.Z.C (referred to as "FundedNext Challenges," "Challenges," "Evaluation," or "Services," and collectively as the "Provider"). These services are primarily accessible through the website **www.fundednext.com** (referred to as the "Website"). The Customer is kindly urged to thoroughly review these Terms. The Customer is not obliged to use the Services or engage in FundedNext Challenges if the Customer does not agree with or comprehend any part of these Terms. It is essential that the Customer choose to use the Services only if the Customer understands and consents to these Terms. By engaging in our Services or participating in the FundedNext Challenges we offer, the Customer validates their acceptance of these Terms and their commitment to adhere to them.

By using our site and/or enlisting in a Challenge, the Customer agrees to be bound by the following terms and conditions, as well as any other terms and conditions and policies linked herein and/or accessible through a hyperlink. These Terms of Service apply to all users of the site, including but not limited to browsers, vendors, consumers, merchants, and/or content creators.

Please carefully read these Terms of Service before accessing or using our website. By accessing or using any part of the site, the Customer agrees to be bound by these Terms of Service. If the Customer does not agree to all of the terms and conditions of this agreement, the Customer may not visit the website or use any services. If these Terms of Service are deemed an offer, acceptance is strictly limited to these Terms of Service. The Services are only available to those over the age of 18 who reside in countries where the Services are provided. The list of countries the Provider does not provide service to is listed here.

Any additional features or tools added to the existing site (within the given accounts area) will be subject to the Terms of Service as well. The most recent version of the Terms of Service can be seen on this page at any time. By making updates and/or changes to our website, we reserve the right to update, change, or replace any part of these Terms of Service. It is the Customer's responsibility to check this page periodically for changes. The Customer's continued use of or access to the website after the posting of any changes constitutes acceptance of those changes.

IN ACCORDANCE WITH APPLICABLE LAWS

NONE OF THE SERVICES PROVIDED TO THE CUSTOMER BY THE PROVIDER CAN BE CONSIDERED INVESTMENT SERVICES. THE PROVIDER DOES NOT GIVE OR PROVIDE TO THE CUSTOMER ANY GUIDANCE, INSTRUCTIONS, OR INFORMATION ABOUT HOW OR IN WHAT MANNER THE CUSTOMER SHOULD PERFORM TRANSACTIONS WHEN USING THE SERVICES OR OTHERWISE, NOR ANY OTHER SIMILAR INFORMATION ABOUT THE INVESTMENT TOOLS TRADED, AND THE PROVIDER DOES NOT ACCEPT ANY SUCH GUIDANCE, INSTRUCTIONS, OR INFORMATION FROM THE CUSTOMER. NEITHER THE SERVICES NOR THE RECOMMENDATIONS CONSTITUTE INVESTMENT ADVICE. THE PROVIDER'S EMPLOYEES, STAFF, AND REPRESENTATIVES ARE NOT AUTHORISED TO GIVE INVESTMENT ADVICE OR RECOMMENDATIONS. IF ANY INFORMATION OR STATEMENT OF THE PROVIDER'S EMPLOYEES, STAFF, OR REPRESENTATIVES IS INTERPRETED AS INVESTMENT ADVICE OR RECOMMENDATIONS, THE PROVIDER EXPLICITLY DISCLAIMS THAT SUCH INFORMATION OR STATEMENT IS INVESTMENT ADVICE OR RECOMMENDATIONS AND SHALL NOT BE RESPONSIBLE FOR THEM

We may provide third parties access to our website to debug and/or maintain issues with our website, database, or infrastructure. These accesses are monitored and restricted once the scope of work is undertaken.

The Customer must pay registration fees to have access to the FundedNext (a brand of GrowthNext-F.Z.C) platform, models, and services. If the service has begun (i.e., the Customer has started trading) and/or the Customer has not successfully completed the Evaluation, the Customer is not entitled to a refund of the registration fee. ALL PAYMENTS ARE FINAL AND ONLY FOR THE PURPOSE OF EVALUATION.

Section 1 - Terms of Online Registration

In signing these Terms of Service, the Customer officially confirms that they are of legal age in their state or province of residence. As a condition of using the Services, the Customer agrees not to engage in any illegal or unauthorized activities (including but not limited to infringement of copyright laws). The Customer's access to the Services will be terminated immediately if the Customer violates any of these Terms.

Section 2 – General Conditions

The Provider reserves the right to refuse service to anyone at any time for any reason. The Customer acknowledges that their content (except for credit card information), which is not of a sensitive nature, may be transferred unencrypted and involve (a) transmissions over various networks; and (b) changes to conform and adapt to technical requirements of

connecting networks or devices. Credit card information is always encrypted during transfer over networks. Without the Provider's express written consent, the Customer agrees not to reproduce, duplicate, copy, sell, resell, or exploit any part of the Service, use of the Service, or access to the Service or any contact on the website through which the Service is provided. The headings used in this agreement are included for convenience only and will not limit or otherwise affect the Terms.

Section 3 – Information Accuracy, Completeness, and Timeliness

The Customer acknowledges that the services and content are provided "as is" with all faults, defects, or potential shortcomings, and that the use of such services and content is solely at the Customer's own risk. While the Provider endeavors to ensure that all information is accurate and current, it recognizes that technology may have inherent limitations. Consequently, the Customer accepts these potential limitations and agrees to use the services with this understanding. To the maximum extent permitted by applicable law, the Provider disclaims all warranties, whether statutory, express, implied, or otherwise, including, but not limited to, any warranties of merchantability, fitness for a particular purpose, or non-infringement of rights.

Section 4 – Changes to the Service and Prices

Product prices are subject to change without prior notice. The Provider reserves the right to modify or discontinue the Service (including any accounts offered or any part or content thereof) at any time and without prior notice. The Provider shall not be liable to the Customer or to any third-party for any modification, price change, suspension, or discontinuance of the Service.

Section 5 – Products or Services

The Provider retains the right, but not the obligation, to limit the sales of products or services to any person, geographic region, or jurisdiction. This discretion may be exercised on a case-by-case basis. Furthermore, the Provider reserves the right to limit the quantities of any products or services that it offers. All descriptions of products or product pricing are subject to change at any time without notice, at the sole discretion of the Provider. The Provider also reserves the right to discontinue any product at any time. Any offer for any product or service made on this site is void where prohibited.

The Provider does not warrant that the quality of any products, services, information, or other material purchased or obtained by the Customer will meet the Customer's expectations, or that any errors in the Service will be corrected.

Section 6 – Account Information and Billing Accuracy

The Provider reserves the right to refuse any order placed with them. In the Provider's sole discretion, there may be limits or cancellations on the quantity of items purchased per individual, per household, or per order. These restrictions could be applied to orders made by the same customer account, the same credit card, and/or to orders that utilize the same billing and/or shipping address. Should an order be changed or cancelled, the Provider will attempt to notify the Customer by contacting the e-mail and/or billing address/phone number provided at the time the order was made. Additionally, the Provider reserves the right to limit or prohibit orders that, in the Provider's sole judgment, appear to be placed by dealers, resellers, or distributors.

The Customer agrees to provide current, complete, and accurate purchase and account information for all purchases made at the Provider's site. The Customer also agrees to promptly update their account and other information, including email address, credit card numbers, and expiration dates, so that the Provider can complete transactions and contact the Customer as needed.

Section 7 – Additional Resources

The Provider may provide the Customer with access to third-party tools over which the Provider neither monitors nor has any control nor input. The Customer acknowledges and agrees that the Provider offers access to such tools "as is" and "as available" without any warranties, representations, or conditions of any kind and without any endorsement. The Provider shall have no liability whatsoever arising from or related to the Customer's use of optional third-party tools.

Any use by the Customer of optional tools offered through the site is entirely at the Customer's own risk and discretion, and the Customer should be familiar with and approve of the terms on which tools are provided by the respective third-party provider(s). The Provider may also, in the future, offer new services and/or features through the website (including, the release of new tools and resources). Such new features and/or services shall also be subject to these Terms of Service.

Section 8 – External Links

Certain content, products, and services available via the Provider's Service may contain materials from third parties. Third-party links on the Provider's site may direct the Customer to third-party websites that are not affiliated with the Provider. The Provider is not responsible for examining or evaluating the content or accuracy, and it does not warrant and

will not have any liability or responsibility for any third-party materials or websites, or for any other materials, products, or services of third parties.

The Provider is not liable for any harm or damages related to the purchase or use of goods, services, resources, content, or any other transactions made in connection with any third-party websites. The Customer should review carefully the third-party's policies and practices and make sure they understand them before engaging in any transaction. Complaints, claims, concerns, or questions regarding third-party products should be directed to the third party.

Section 9 – Comments, Feedback, and Other Submissions from Users

The Customer agrees that the Provider may, at any time, without restriction, edit, copy, publish, distribute, translate, and otherwise use in any medium any comments that the Customer sends to the Provider, whether online, by email, by postal mail, or otherwise. The Provider is not and shall not be under any obligation to (1) maintain any comments in confidence; (2) pay compensation for any comments; or (3) respond to any comments.

The Provider may, but has no obligation to, monitor, edit, or remove content that the Provider determines in its sole discretion to be unlawful, offensive, threatening, libelous, defamatory, pornographic, obscene, or otherwise objectionable or which violates any party's intellectual property or these Terms of Service.

The Customer represents and warrants that their comments will not violate any rights of third parties, including copyright, trademark, privacy, personality, or any other personal or proprietary right. The Customer further represents and warrants that their comments will not contain libellous or otherwise unlawful, abusive, or obscene material, or contain any computer virus or other malware that could in any way affect the operation of the Service or any related website. The Customer must not use a false e-mail address, pretend to be someone other than themselves, or otherwise mislead the Provider or third parties as to the origin of any comments. The Customer is solely responsible for any comments they make and their accuracy. The Provider takes no responsibility and assumes no liability for any comments posted by the Customer or any third party.

Both the Customer and the Provider shall conduct all interactions under this agreement with the highest degree of fairness and respect. Any action detrimental to the reputation or legitimate interests of either party is strictly prohibited. This agreement imposes an affirmative duty to refrain from such detrimental conduct both during and after the term of the trading relationship. Disputes should be resolved in accordance with the terms of this agreement and applicable law. Violation of these provisions may result in immediate legal

action, including a cease and desist notice and other legal remedies to protect the rights and interests of the aggrieved party.

Section 10 – Personal Information

The submission of personal data through the website is governed by The Provider's Privacy Policy.

Section 11 – Know Your Customer (KYC)

GrowthNext - F.Z.C is to implement robust and comprehensive procedures in accordance with legal and regulatory requirements pertaining to Know Your Customer (KYC), Customer Due Diligence (CDD), and Enhanced Due Diligence (EDD).

11.2. Know Your Customer (KYC):

The objectives of the Know Your Customer (KYC) procedures are to:

11.2.1. Establish a streamlined and efficient mechanism for identifying and vetting prospective Counterparties.

11.2.2. Mitigate the risks of money laundering by acquiring and analyzing relevant information.

11.2.3. Facilitate the detection of suspicious transactions by identifying inconsistencies with the information received.

11.3. Customer Due Diligence (CDD):

CDD is a mandatory process for initiating and maintaining engagements with Counterparties. The CDD protocol mandates:

11.3.1. Collecting verifiable identification data from Counterparties to unequivocally establish their identity.

11.3.2. Understanding the intended nature and purpose of the Counterparty's trading activities, including the strategies to be employed and the financial market knowledge to be assessed.

11.3.3. Performing ongoing monitoring of trading activities to ensure they are consistent with the Counterparty's stated trading strategy, risk profile, and financial resources.

11.4. Enhanced Due Diligence (EDD):

For business relationships or transactions that present a heightened risk, as determined by The Provider's risk assessment, EDD will be implemented. These enhanced measures exceed standard CDD requirements and include:

11.4.1. Obtaining additional identity verification documents, particularly in cases where standard documentation has proven insufficient or questionable.

11.4.2. Conducting a detailed interview, which may include a video call, to personally engage with the Counterparty and better assess their legitimacy.

11.4.3. Gaining deeper insight into the Counterparty's trading methodology to ensure it aligns with our risk tolerance and the ethical trading standards set forth by GrowthNext - F.Z.C.

11.4.4. Implementing intensified and ongoing monitoring of the Counterparty's trading activities, to dynamically evaluate adherence to agreed-upon practices and risk parameters.

11.5. Know Your Customer (KYC) Procedures by GrowthNext - F.Z.C

The Provider shall undertake KYC measures for all proposed transactions and business relationships. Under general KYC measures, The Provider shall take the following steps to ensure a transparent KYC process:

11.5.1. Verify the identity of the Counterparty based on original or properly certified documents after the challenge phases have been successfully completed. The KYC verification process shall be initiated first.

11.5.2. Upon starting verification, the Counterparty shall be vetted through two options: scanning a QR code or receiving a verification link via SMS. The Counterparty will receive instructions upon choosing the convenient option.

11.5.3. The Counterparty shall be asked to submit specific documents. The documents may include a valid photo ID such as:

- National ID.
- Passport.
- Driving License.

11.5.4. KYC verification shall not be completed if expired documents are provided. Only the most recent and valid documents will be accepted to proceed with the verification process.

11.5.5. After gathering the necessary documents, the Counterparty shall be directed to the "Agreement Signing" stage. They must provide a full name and address and agree to the terms mentioned in the agreement. Following these steps, the verification process shall commence and may take 48-72 hours.

11.5.6. The Provider requires strict compliance with these measures. The Provider reserves the right to refuse or discontinue any business engagement with a Counterparty if the CDD,

EDD, or KYC criteria, as outlined herein, are not satisfactorily met11.5.7. It is to be noted that failure to pass the KYC verification process shall result in the rejection of the Counterparty's FundedNext Account application.

Section 12– Errors, Inaccuracies, and Omissions

On rare occasions, information on the site or in the Service may contain typographical errors, inaccuracies, or omissions that may relate to product descriptions, pricing, promotions, offers, product shipping charges, transit times, and availability. The Provider reserves the right to correct any errors, inaccuracies, and to change or update information or cancel orders at any time without prior notice (including after the Customer has submitted their order). The Provider undertakes no obligation to update, amend, or clarify information in the Service or on any related website, including, without limitation, pricing information, except as required by law. No specific update or refresh date should be taken to apply in the Service or on any related website, which could be interpreted to indicate that all information in the Service or on any related website has been modified or updated.

In the event of any discrepancies or anomalies encountered in the Service, including but not limited to account details, transactions, or service features, the Customer is obliged to report such issues to the Provider immediately. This prompt reporting will enable the Provider to address and correct the issue efficiently, maintaining the integrity and accuracy of the Service. Customers can seek assistance and report these issues to FundedNext Support via the live chat option available on the dashboard or website, or by emailing support@fundednext.com. The Provider reserves the right to take appropriate actions to rectify any discrepancies to ensure that the Service operates correctly and in line with the intended terms.

Section 13 – Restricted Uses

The Customer is prohibited from using the site or its content (a) for any illegal purpose; (b) to solicit others to perform or participate in any unlawful acts; (c) to violate any international, federal, provincial, or state regulations, rules, laws, or local ordinances; (d) to infringe upon or violate our intellectual property rights or the intellectual property rights of others; (e) to harass, abuse, insult, harm, defame, slander, disparage, intimidate, or discriminate based on gender, sexual orientation, religion, ethnicity, race, age, national origin, or disability; (f) to submit false or misleading information; (g) to upload or transmit viruses or any other type of malicious code that will or may be used in any way that will affect the functionality or operation of the Service or any related website, other websites, or the Internet. The Provider reserves the right to terminate the Customer's use of the Service and any related website for any breach of these prohibitions.

Section 14 - Prohibited Trading Practices

14.1. The Customer is prohibited from conducting trades that contravene the stipulations outlined in this section or the FAQ. Any trades that are in violation of these stipulations are strictly forbidden. The Customer must adhere to the rules and guidelines set forth in this section, as well as those established by the FAQ when utilizing the Services

14.1.1. The Customer must not intentionally or unintentionally use trading strategies that exploit errors in the Services, such as inaccuracies in displayed prices or delays in their updates, including but not limited to practices commonly known as Latency Trading

14.1.2. Executing trades using an external or slow data feed or performing gap trading is prohibited for the Customer.

14.1.3. Engaging, either alone or in cooperation with others, in any trades or combinations of trades across connected accounts or accounts held within the platform, if the purpose is to manipulate trading, commonly referred to as "Group Trading," is forbidden. Examples of such manipulation include entering into opposite positions simultaneously.

14.1.4. The use of any software, artificial intelligence, ultra-high speed, highfrequency trading, or mass data entry that could manipulate or abuse the Provider's systems or services, or provide an unfair advantage, is prohibited for the Customer.

14.1.5. Performing arbitrage (of any kind), including but not limited to triangular arbitrage, statistical arbitrage, latency arbitrage, market-making arbitrage, spatial arbitrage, pairs trading arbitrage, risk arbitrage, convertible arbitrage, volatility arbitrage, dividend arbitrage, tax arbitrage, yield curve arbitrage, or any other form of arbitrage that may exploit pricing differences between different markets or exchanges, is prohibited for the Customer.

14.1.6. Employing strategies that guarantee the execution of limit orders during periods of low liquidity is prohibited for the Customer, as such practices do not reflect actual market conditions and therefore contravene the realistic trading simulation standards maintained by The Provider

14.1.7. Performing trades that are inconsistent with typical forex or any other financial market operations is prohibited for the Customer. They should also avoid any activities that may cause financial or other harm to The Provider, such as over-leveraging, over-exposure, making one-sided bets, grid trading, tick scalping, or account rolling. Engaging in any of these activities may raise valid concerns about intentionally harming The Provider.

14.1.8. Engaging in copy trading, where trades mimic or replicate the trading activities of other traders or entities without prior authorization from The Provider, is prohibited for the Customer.

14.1.9. The Customer, or any third party, is prohibited from participating in or collaborating to have a third party execute trades for the Customer, whether such third party is a private individual or a professional, or to permit access to or trading on their FundedNext Challenge Account by any third party.

14.1.10. Accessing any third-party FundedNext Challenge Account, trading on behalf of any third party, or conducting any account management or similar services where the Customer commits to trade, run, or manage a FundedNext Account on behalf of another user, whether professionally or otherwise, is prohibited for the Customer.

14.1.11. Opening positions with sizes that are noticeably larger than those of the Customer's other trades, whether on this account or another one of theirs, is prohibited.

14.1.12. Opening positions with numbers that are noticeably smaller or larger than those of the Customer's other trades, whether on this account or another one of theirs, is prohibited

14.1.13. Using a high level of margin is prohibited for the Customer.

14.2. Should the Customer engage in any of the prohibited trading practices described in Clause 14.1, The Provider may:

14.2.1. Consider this as a failure to comply with the terms of the relevant Challenge provided by The Provider.

14.2.2. Remove the transactions in violation of the prohibition from the Customer's trading history and/or exclude their results from the profits and/or losses generated by Demo Trading.

14.2.3. Terminate all Services provided to the Customer and subsequently terminate this agreement.

14.3. If any or all of the Prohibited Trading Practices are carried out on one or more FundedNext Challenge Accounts of a Customer or on accounts of different Customers, or by combining trading through FundedNext Challenge Accounts and any FundedNext Accounts, The Provider is entitled to cancel all Services and terminate all relevant contracts in respect of all FundedNext Challenge Accounts of the Customer. The Provider may take any actions set forth in Section 14.2 and this Section 14.3 at its sole discretion.

14.4. If The Provider's Trader accounts are used for or involved in the prohibited trading practices, this may also constitute a violation of the respective terms and conditions for The Provider's Trader third-party accounts and may result in the cancellation of all such user accounts and termination of the respective agreements by the third-party provider.

14.5. If the Customer repeatedly engages in any of the practices described in Article 14.1, and The Provider has previously notified the Customer thereof, The Provider may deny the Customer access to all or part of the Services, including access to the Dashboard and the

Trading Platform, without any compensation. In such a case, the Customer shall not be entitled to a refund of the fees paid.

14.6. The Provider shall not bear any responsibility for trading or other investment activities that the Customer performs outside the relationship with The Provider, e.g., by using data or other information from the Customer Portal, the trading platform, or in any other way in connection with the services in real trading on the financial markets, even if the Customer uses the same trading platform for such trading that it uses for demo trading. This shall also apply in particular to any services of third parties which the customer uses via the platform.

Section 15 – Limitation of Liability; Disclaimer of Warranties

The Provider does not promise, represent, or warrant that the Customer's use of the service will be error-free, timely, secure, or uninterrupted. The Provider does not warrant that the results obtained from the use of the service will be accurate or reliable. The Customer acknowledges that The Provider may suspend the service for indefinite periods or cancel the service at any time, with or without notice to the Customer. The Customer expressly agrees that their use of, or inability to use, the service is at their sole risk.

The service and all products and services delivered to the Customer through The Provider's service are provided 'as is' and 'as available' for the Customer's use, without any representation, warranties, or conditions of any kind, either express or implied, including all implied warranties or conditions of merchantability, merchantable quality, fitness for a particular purpose, durability, title, and noninfringement.

In no event will The Provider and its directors, officers, employees, affiliates, agents, contractors, interns, suppliers, service providers, or licensors be liable for any injury, loss, claim, or any direct, indirect, incidental, punitive, special, or consequential damages of any kind, including, without limitation, lost profits, lost revenue, lost savings, loss of data, replacement costs, or any similar damages, whether based in contract, tort (including negligence), strict liability or otherwise, arising from the Customer's use of the service or any products procured using the service, or for any other claim related in any way to the Customer's use of the service or any product, including, but not limited to, any errors or omissions in any content, or any loss or damage of any kind incurred as a result of the use of the service or any content (or product) posted, transmitted, or otherwise made available via the service, even if advised of their possibility.

Because some states or jurisdictions do not allow the exclusion or limitation of liability for consequential or incidental damages, in such states or jurisdictions, The Provider's liability shall be limited to the maximum extent permitted by law.

Section 16 – Indemnification

The Customer agrees to indemnify, defend, and hold harmless The Provider, along with its parent company, subsidiaries, affiliates, partners, officers, directors, agents, contractors, licensors, service providers, subcontractors, suppliers, interns, and employees, from any claims or demands, including reasonable attorneys' fees, made by any third-party due to or arising from the Customer's breach of these Terms of Service, the documents incorporated by reference, or the Customer's violation of any law or the rights of a third-party.

Section 17 – Severability

Should any provision of these Terms of Service be deemed unlawful, void, or unenforceable, such provision will be enforceable to the maximum extent permitted by law. The unenforceable part will be considered severed from these Terms, without affecting the validity and enforceability of the remaining provisions

Section 18 – Termination

Obligations and liabilities arising before the termination date will survive the termination of this agreement for all purposes. These Terms of Service are effective unless and until terminated by either the Customer or the Provider. The Customer may terminate these Terms at any time by notifying the Provider that they no longer wish to use the Services or when they cease using the site.

The Provider may terminate this agreement at any time without notice if, in the Provider's sole judgment, the Customer fails to comply with any term or provision of these Terms. Upon termination, the Customer will remain liable for all amounts due up to and including the termination date, and the Provider may deny the Customer access to the Services.

18.1. Trading Guidelines

The Customer must adhere to the guidelines listed below. Failure to do so shall result in account termination. The Customer must:

18.1.1. Daily Loss Limits: The Customer must not exceed the specified daily loss percentage of the initial account size, inclusive of charges and swaps:

- Evaluation and Express Models: 5%.
- Stellar 1-Step Model: 3%
- Stellar 2-Step Model: 5%

18.1.2. Account Size Maintenance: The account balance must not drop below the specified percentage of the cycle's initial size, considering all positions and associated charges and swaps:

- Evaluation and Express Models: 90%
- Stellar 1-Step Model: 94%
- Stellar 2-Step Model: 90%

18.1.3. Minimum Trading Days Requirement: The Customer must trade for a minimum number of days depending on the model:

- Evaluation Model: 5 days
- Express Model: 10 days
- Stellar Models: 5 days

18.1.4. FundedNext Challenge Express Model: The 'Non-Consistency' designation exempts the Provider from consistency rules, while the 'Consistency' designation mandates adherence to the consistency rule detailed in the FAQ.

18.1.5. Technical Flaw Exploitation: Using system flaws for advantage is prohibited and may lead to immediate suspension.

18.1.6. Hedging: While multiple hedged positions are permissible within a single FundedNext Account, cross-account hedging within FundedNext or with other prop firms is not allowed.

18.1.7. Costs: All costs related to service provision by the Provider are the Provider's responsibility.

18.1.8. Applicable Rules: The terms outlined in the FAQ/Rules govern FundedNext Challenge accounts.

18.1.9. Modification by Add-ons and Special Offers: Add-ons and Special Offers selected during the FundedNext Challenge may modify the trading guidelines in this section. These modifications take precedence over the standard guidelines for their applicable duration.

Violations of the restrictions mentioned in this Article will result in the immediate closure of positions on the trading platform, and the Customer's account may be banned. In such an event, Provider reserves the right to terminate this Contract.

Section 19 – Refund Policy

19.1 Termination Request by Customer: A Customer wishing to terminate their Client Section must send a request to **support@fundednext.com**. Such a request constitutes a desire to end the contractual relationship, resulting in loss of access to all Services, including the Client Section and Trading Platform. The Provider will confirm receipt of the request via email, officially ending the contract. Under these circumstances, the Customer forfeits any right to refunds of fees or other expenditures previously paid.

19.2 Repeated Violations: Should the Customer persist in any prohibited practices after a warning, the Provider may restrict access to all Services without compensation. No refunds will be issued for fees paid in such instances.

19.3 Activation of Services: Upon paying the fee for the FundedNext Challenge program, the Customer will receive login data. By executing the first trade, the Customer acknowledges and agrees that the Provider completes the Services before the withdrawal period ends, waiving the right to contract withdrawal.

19.4 Non-Activation: If the Customer does not activate the FundedNext Challenge within 30 calendar days, access will be suspended. Renewal of access can be requested via email to **support@fundednext.com**, subject to any applicable terms.

19.5 Disputes and Chargebacks: In the event of an unjustifiable fee dispute or chargeback by the Customer, the Provider reserves the right to cease services and deny future services at its discretion.

19.6 Refunds: A refund request must be made within 7 days of registration if no trading activity has occurred. Once trading commences, fees become nonrefundable, with no provision for full or partial refunds

Section 20 – Entire Agreement

The Provider's decision not to exercise or enforce any right or provision of these Terms of Service shall not be deemed a waiver of such right or provision. Any waiver of rights under these Terms of Service will be effective only if it is in writing and signed by the Provider. These Terms of Service, along with any policies or operating rules posted by the Provider on this site or in relation to The Service, constitute the full and exclusive understanding and agreement between The Customer and the Provider. This agreement governs The Customer's use of the Service, overriding all prior or contemporaneous agreements, communications, and proposals, whether oral or written, between The Customer and the Provider (including, but not limited to, any prior versions of the Terms of Service). Should any ambiguity or question regarding intent or interpretation arise, it shall be resolved in a neutral manner and not automatically against the drafting party. This approach does not override any statutory rights the Customer may hold under applicable consumer protection laws that are not subject to contractual waiver.

Section 21 – Governing Law

These Terms of Service, as well as any additional agreements under which the Provider gives The Customer Services, are regulated and construed in accordance with the Customers's legal jurisdiction.

Section 22 – Local Law

The Counterparty is advised to be fully aware of and comply with all local laws and regulations pertaining to their participation in the FundedNext Challenge. The Customer acknowledges that they are engaging in the Service at their own risk and assumes all responsibility for their participation. By using the Service, the Customer affirms they are over the age of 18 years and acknowledges that the Provider is not responsible for any actions taken by the Customer that may violate local laws. Any such violations are the sole responsibility of the Customer.

Section 23 – Changes to Terms of Service

The Customer's legal jurisdiction governs and is construed in line with these Terms of Service and any other agreements whereby the Provider provides The Customer Services.

Section 24 – Contact Information

Office no. 7, AI Robotics HUB, C1 Building, AFZ, Ajman, UAE

